J. K. Pal, M.Sc., LL.M. (Medalist), PGDBA, GCIP, E-Commerce & IP
Qr. No. B- 4/3,1st Floor, 205 B.T. Road, Kolkata-700108

Dated: 30.04.2009.

Mr. Shailesh Gandhi
Hon'ble Information Commission
Central Information Commissioner

Sub: Request for interpretation of RTI Act by the Hon'ble Information Commission

Sir

I would like to say most humbly that in the year 2005 I sought the following information as admitted by the OSD, IIT Kharagpur, vide reply of OSD, No. HT/3-9/160/04/09/20, dated 21.04.2009, copy enclosed:

1. Roster of direct recruitment of Deputy Registrar
2. Category and name of existing incumbents in the post of Deputy Registrar
3. Copy of the advertisements for the post of Deputy Registrar for the year 1996, 2000, 2001, 2002 and 2003.
4. Copy of the selection committee members for the post of Deputy Registrar on 10.08.2008 and the institute provided the information.

I also made a writ application before the Hon'ble High Court at Calcutta for violation of Article 14 of the Constitution. Now I apprehend that there is also a corrupt practice for appointment of Deputy Registrar in IIT Kharagpur by Mr. Gunasekaran. Since I was busy with my duties I asked my wife, Smt Sumita Pal, to obtain some information from the PIO of IIT Kharagpur in the yes/no format in particular as per Section 7(9) of the RTI Act. The OSD on behalf of the PIO replied in a less transparent manner to my wife. As she is a housewife, busy in upbringing kids, she would not be able to represent her properly; therefore, I thought that I should apply to the PIO seeking the following information and to verify, confirm and/or to provide :

Sl. No.	Information Sought	Reply Provided by PIO
1.	**Whether** Dr. Tapan Kumar Ghosal was promoted to the post of Deputy Registrar?	**No**
2.	Date on which the Scrutiny Committee short listed application of Dr. Tapan Kumar Ghosal for the interview to the post of Deputy Registrar?	01.06.2004
3.	As per Advt. No.R/3/2003, whether Dr. Tapan Kumar Ghosal did possess 55% of marks in the Master's Degree?	No

4.	As per Advt. No. R/3/2003, whether Dr. Tapan Kumar Ghosal was between 40-50 years of preferable age at the time of his recruitment?	No
5.	Whether Dr. Tapan Kumar Ghosal submitted any certificate for obtaining his PhD degree on or before the issue of call letters, **dated 28.06.04**, to the short listed candidates for an interview on **09.08.04** for the post of Deputy Registrar?	No
6.	Date on which the PhD degree was awarded to Dr. Tapan Kumar Ghosal by the Ranchi University as recorded in your institution. Provide a copy of the certificate	21.07.2004
7.	Whether the Government Rules for reservation as to the roster point was complied for appointment of Dr. Tapan Kumar Ghosal to the post of Deputy Registrar?	No

Since some of the information provided to my wife by the PIO is misleading and it prima-facie appears to me as false as per the information collected from various sources. I sought the above query but the OSD of IIT Kharagpur informed me that my statement as regards the appointment of Dr. Tapan Kumar Ghosal is not correct though I did not made any comment regarding appointment of Dr. Tapan Kumar Ghosal and he further informed me that it is with malafide intention and as the said application has been couched in offensive language and it has been treated as a vexatious request, copy enclosed. However, he has provided the same information as provided to my wife Smt. Sumita Pal in an evasive manner.

Under the above circumstances, I would be ever grateful to you if you kindly inform me whether it would constitute vexatious request for information and whether the appellant has right to seek information in YES/No format in the said circumstances. I have applied before the 1st Appellate Authority for this information. Therefore, Commission's interpretation would be absolutely necessary to obtain this information. If I do not receive any reply within a reasonable time I would presume that the appellant has the right to seek such information in Yes/No format under the said circumstances.

Thanking you,

Yours faithfully,

(J.K.Pal)